

		In fact, Defendant Wilson may be entitled to mandatory relief because he was an attorney representing himself at the time of the default. (See <i>ibid.</i>) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233, superseded by statute, on other grounds, as discussed in <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 64.) Thus, even if Plaintiffs had not filed an amended complaint, the court would have been required to grant the motion. Defendant Wilson shall give notice of this ruling.
4	Nepi vs. Harley-Davidson, Inc. 30-2023-01335491	<u>Motion to Compel Discovery</u> Defendant Harley-Davidson Motor Company, Inc.'s Motion to Compel Deposition of Plaintiff Garrett A. Nepi and Request for Sanctions is CONTINUED to April 21, 2025 at 9:00 a.m. in Department N15. <u>Pending Motion</u> Defendant Harley-Davidson Motor Company, Inc. moves to compel the deposition of Plaintiff Garrett A. Nepi. <u>Procedural Posture</u> While Plaintiff has not filed an opposition to this motion, he has filed a Motion for Protective Order, which seeks both a protective order relating to and to quash service of "the deposition notice defectively served by Defendants." (See ROA #117 at p. 1.) Although it is not clear, it appears that the Motion for Protective Order relates to Defendant's Notice of Taking Deposition of Plaintiff and Production of Documents that is at the heart of this motion. Therefore, it may be better for the two motions to be heard together. The court will continue this motion so that it may be heard with the Motion for Protective Order. The court clerk shall give notice of this ruling.